

COMMITTEE ON PUBLIC SAFETY
SENATE AMENDMENTS TO S.B. 1160
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-3729, Arizona Revised Statutes, is amended to
3 read:

4 13-3729. Unlawful operation of model or unmanned aircraft;
5 state preemption; classification; definitions

6 A. It is unlawful for a person to operate a model aircraft or a
7 civil unmanned aircraft if the operation:

8 1. Is prohibited by a federal law or regulation that governs
9 aeronautics, including federal aviation administration regulations.

10 2. Interferes with a law enforcement, firefighter or emergency
11 services operation.

12 B. It is unlawful for a person to operate or use an unmanned
13 aircraft or unmanned aircraft system to intentionally photograph or loiter
14 over or near a critical facility in the furtherance of any criminal
15 offense.

16 C. IT IS UNLAWFUL FOR A PERSON TO OPERATE A CIVIL UNMANNED AIRCRAFT
17 IF THE OPERATION IS WITHIN [~~FOUR HUNDRED~~] [FIVE THOUSAND TWO HUNDRED
18 EIGHTY] FEET OF OR WITHIN [~~FOUR HUNDRED~~] [FIVE THOUSAND TWO HUNDRED
19 EIGHTY] FEET ABOVE A TICKETED ENTERTAINMENT EVENT UNLESS THE PERSON:

20 1. OBTAINS CONSENT FROM ANOTHER PERSON WITH LEGAL AUTHORITY OVER
21 THE TICKETED ENTERTAINMENT EVENT.

22 2. IS AN EMPLOYEE OF THE PROPERTY WHERE THE TICKETED ENTERTAINMENT
23 EVENT IS HELD AND IS CONDUCTING OFFICIAL BUSINESS.

24 3. IS AN EMPLOYEE OF A WATER, SEWER, ELECTRIC, TELECOMMUNICATIONS,
25 CABLE OR OTHER PUBLIC OR REGULATED UTILITY AND IS CONDUCTING OFFICIAL
26 BUSINESS.

1 4. IS OPERATING THE PERSON'S OWN CIVIL UNMANNED AIRCRAFT ABOVE THE
2 PERSON'S OWN PRIVATE PROPERTY AND THE OPERATION IS CONSISTENT WITH FEDERAL
3 LAW AND IS NOT USED FOR ANY OF THE FOLLOWING:

4 (a) COMMERCIAL PURPOSES.

5 (b) TO CONVEY OR COMMUNICATE A MESSAGE OR TO RECORD FOR THE
6 PURPOSES OF COMMERCIAL BROADCASTING OR PUBLICATION.

7 (c) TO MONITOR OR OTHERWISE INTERFERE IN ANY WAY WITH A TICKETED
8 ENTERTAINMENT EVENT.

9 ~~E.~~ D. Except as authorized by law, a city, town or county may not
10 enact or adopt any ordinance, policy or rule that relates to the ownership
11 or operation of an unmanned aircraft or unmanned aircraft system or
12 otherwise engage in the regulation of the ownership or operation of an
13 unmanned aircraft or an unmanned aircraft system. Any ordinance, policy
14 or rule that violates this subsection, whether enacted or adopted by the
15 city, town or county before or after August 6, 2016, is void.

16 ~~D.~~ E. This section does not:

17 1. Apply to a person or entity that is authorized or allowed by the
18 federal aviation administration to operate or use an unmanned aircraft
19 system if the person's or entity's operation or use complies with the
20 authorization granted to the person or entity or with federal aviation
21 administration rules.

22 2. Prohibit a city, town or county from enacting or adopting
23 ordinances or rules on the operation or use of a public unmanned aircraft
24 that is owned by the city, town or county.

25 3. Prohibit a city, town or county from enacting or adopting
26 ordinances or rules that regulate the takeoff or landing of a model
27 aircraft in a park or preserve owned by the city, town or county if:

28 (a) There are other parks or preserves that are within the city,
29 town or county and that are available for model aircraft operation.

30 (b) The city, town or county only has one park or preserve that is
31 within the city, town or county.

32 4. Apply to the operation of an unmanned aircraft, including a
33 public unmanned aircraft, by a first responder as defined in section
34 36-661 while acting in the first responder's official capacity or an
35 emergency worker while engaged in or supporting authorized emergency
36 management activities or performing emergency functions pursuant to title
37 26, chapter 2.

38 ~~E.~~ F. A violation of subsection B of this section is a class 6
39 felony, except that a second or subsequent violation is a class 5 felony.
40 A violation of subsection A OR C of this section is a class 1 misdemeanor.

41 ~~F.~~ G. For the purposes of this section:

42 1. "Civil unmanned aircraft" means an unmanned aircraft or unmanned
43 aircraft system that is operated by a person for any purpose other than
44 strictly for hobby or recreational purposes, including commercial
45 purposes, or in furtherance of or incidental to any business or media
46 service or agency.

1 2. "Commercial purposes" means the use of an unmanned aircraft in
2 return for financial compensation and includes aerial photography, aerial
3 mapping or geospatial imaging.

4 3. "Critical facility" means any of the following:

5 (a) A petroleum or alumina refinery.

6 (b) A petroleum, chemical or rubber production, transportation,
7 storage or processing facility.

8 (c) A chemical manufacturing facility.

9 (d) A water or wastewater treatment facility and water development,
10 distribution or conveyance system, including a dam.

11 (e) An electric generation facility, as defined in section
12 42-14156, and any associated substation or switchyard.

13 (f) An electrical transmission or distribution substation.

14 (g) An electrical transmission line of at least sixty-nine thousand
15 volts.

16 (h) An electronic communication station or tower.

17 (i) An energy control center.

18 (j) A distribution operating center.

19 (k) A facility that transfers or distributes natural gas, including
20 a compressor station, regulator station, city gate station or pressure
21 limiting station or a liquefied natural gas facility or supplier tap
22 facility.

23 (l) Any railroad infrastructure or facility.

24 (m) A federal, state, county or municipal court.

25 (n) A public safety or emergency operation facility.

26 (o) A federal, state, county or municipal jail or prison or other
27 facility in which persons are incarcerated.

28 (p) A federal or state military installation or facility.

29 (q) A hospital that receives air ambulance services.

30 4. "Model aircraft" has the same meaning prescribed in section 336
31 of the FAA modernization and reform act of 2012 (P.L. 112-95), as amended.

32 5. "Person" means a corporation, firm, partnership, association,
33 individual or organization or any other group acting as a unit.

34 6. "Public unmanned aircraft" means an unmanned aircraft or
35 unmanned aircraft system that is operated by a public agency for a
36 government-related purpose.

37 7. "TICKETED ENTERTAINMENT EVENT" MEANS A MUSIC, SPORTING OR
38 PERFORMING ARTS EVENT THAT IS HELD IN A LOCATION WITH GATED ENTRIES OR
39 BARRIERS THAT PREVENT ACCESS TO THE GENERAL PUBLIC AND IN WHICH A
40 REVOCABLE LICENSE THAT HAS BEEN ISSUED BY AN OWNER, OPERATOR OR LESSEE OF
41 THE PROPERTY IS REQUIRED FOR ATTENDANCE AT THE EVENT.

42 ~~7.~~ 8. "Unmanned aircraft" means an aircraft, including an aircraft
43 commonly known as a drone, that is operated without the possibility of
44 direct human intervention from within or on the aircraft.

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1 ~~8.~~ 9. "Unmanned aircraft system" means an unmanned aircraft and
2 associated elements, including any communication links and components that
3 control the unmanned aircraft.

4 Enroll and engross to conform

5 Amend title to conform

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